General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 General Election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

Constitutional Amendment 3

PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED STUDENT GOVERNING BODY OF THE INSTITUTION; PROVIDING THAT, EXCEPT FOR A STUDENT MEMBER, MEMBERS OF THE BOARDS OF REGENTS SHALL NOT HAVE CHANGED THEIR POLITICAL PARTY REGISTRATION IN THE TWELVE MONTHS PRECEDING APPOINTMENT.

For: _____ Against: _____

Purpose

Constitutional Amendment 3 proposes to amend Article 12, Section 13 of the Constitution of New Mexico to limit the governor's discretion in appointing members to the boards of regents of the state educational institutions. Currently, regents are appointed by the governor and approved by the Senate, subject to only a few qualifications. Nonstudent regents must be "qualified electors of the state of New Mexico", and no more than three of five or four of seven of these members on a particular board may be registered with the same political party at the time they are appointed.

Student regents must be students of their respective institutions and are appointed from a list provided by the president of their respective institutions. The proposed amendment would require the legislature to establish a bipartisan or nonpartisan regent nominating committee for each of the 10 state educational institutions and would limit the governor's prospective appointments to the nominees selected by the regent nominating committees. Additionally, the proposed amendment would require the governor to appoint student regents from lists provided by the elected student governing bodies of their respective institutions instead of by the institutions' presidents. Finally, excepting the student regents, the proposed amendment would disqualify a person from being appointed to a board of regents if the person changed political party registration in the 12 months preceding the person's appointment.

Arguments For

1. **Governance of the state educational institutions is an important and challenging task that requires specialized knowledge in multiple fields.**

The state educational institutions serve the wide range of cultural, economic and social configurations of New Mexico's communities and, for the specialized schools, meet the unique needs of New Mexico students who are blind, visually impaired or deaf. Through establishing regent nominating committees by law, the legislature will ensure that a nominating committee provides to the governor a list of nominees who would best serve the interests of the institution as a regent. Presuming that the regent nominating committees will comprehensively vet the best qualified prospective regents, there could be more

accountability in the governance of the state educational institutions.

2. **Regent nominating committees may limit or remove the influence of politics from the appointment process.**

Without requiring substantive qualifications for regents to guide the governor's appointments to boards of regents, the current appointment process allows for outsized political influence on the membership of the boards of regents. By requiring the establishment of bipartisan or nonpartisan regent nominating committees, the amendment could insulate the appointment process from politics or other partisan considerations and ensure that the people appointed to the boards of regents are qualified to serve. This could enhance the governance of the state educational institutions.

Arguments Against

1. **The amendment would alter the checks and balances between the legislature and the executive regarding the appointment of state officers.**

Traditionally, the executive has the power to appoint, and the Senate has the power to advise and consent to the governor's appointees or reject the governor's appointees. The existing language of Article 12, Section 13 of the Constitution of New Mexico reflects this distribution of powers and clearly assigns responsibilities to the governor and the members of the Senate who are accountable to the voters for poor appointment decisions. Constitutional Amendment 3 obscures the responsibility for appointment decisions by diluting the governor's authority. Additionally, in establishing the nominating committees, the legislature further obscures the governor's and Senate's appointment-related responsibilities as currently provided by the Constitution of New Mexico.

2. **<u>The amendment may dilute the governor's or the Senate's accountability in appointing regents.</u>**

The Constitution of New Mexico currently places the responsibility of appointment and confirmation on the governor and the Senate, respectively. By creating a nominating committee, the proposed amendment would remove some of that responsibility from the governor and the Senate, which are both accountable to the voters. A nominating committee, on the other hand, is not accountable to the voters. The governor can argue that he or she can only consider the nominees provided by the nominating committee, thus lessening the governor's accountability for the selection. The governor, and to some extent the Senate, is confined to the slate of nominees provided by the nominating committee.

Full Text of Legislation

Note:
<u>Underscored Material</u> = new language proposed for insertion
[~~Bracketed material~~] = existing language proposed for deletion

HOUSE JOINT RESOLUTION 1 - Proposed Constitutional Amendment 3

PROPOSING AN AMENDMENT TO ARTICLE 12, SECTION 13 OF THE CONSTITUTION OF NEW MEXICO TO ESTABLISH NOMINATING COMMITTEES TO PROVIDE LISTS OF NOMINEES TO THE GOVERNOR FOR APPOINTMENT OF NONSTUDENT MEMBERS TO THE BOARDS OF REGENTS OF STATE EDUCATIONAL INSTITUTIONS; PROVIDING THAT STUDENT MEMBERS OF BOARDS OF REGENTS SHALL BE APPOINTED FROM A LIST PROVIDED BY AN ELECTED